

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

CHRISTOPHER PEREZ, JOSE HERNANDEZ, and
ROSE ZAYAS

Plaintiffs,

-against-

CITY OF NEW YORK, MANUEL SEPULVEDA, IGNAZIO
CONCA, SERENA SMITH, HENRY CHERNYAVSKY,
FRANK LUPO, MICHAEL SMITH, JAMES PEDRO, and
JOHN and JANE DOE 1 through 10, individually and in their
official capacities, (the names John and Jane Doe being fictitious,
as the true names are presently unknown),

Defendants.

**AMENDED
COMPLAINT**

11 CV 3117
(SJ)(MDG)

Jury Trial Demanded

Plaintiffs CHRISTOPHER PEREZ, JOSE HERNANDEZ, and ROSE ZAYAS, by their
attorneys, Leventhal & Klein, LLP, complaining of the defendants, respectfully alleges as
follows:

Preliminary Statement

1. Plaintiffs bring this action for compensatory damages, punitive damages and
attorney's fees pursuant to 42 U.S.C. §§ 1981, 1983 and 1988 for violations of their civil rights,
as said rights are secured by said statutes and the Constitutions of the State of New York and the
United States.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. §§ 1981, 1983 and 1988, and the
Fourth and Fourteenth Amendments to the United States Constitution.

3. Jurisdiction is found upon 28 U.S.C. §§1331, 1343 and 1367.

VENUE

4. Venue is properly laid in the Eastern District of New York under 28 U.S.C. § 1391(b), in that this is the District in which the claim arose.

JURY DEMAND

5. Plaintiffs respectfully demand a trial by jury of all issues in this matter pursuant to Fed. R. Civ. P. 38 (b).

PARTIES

6. Plaintiff CHRISTOPHER PEREZ is a fifty-year-old Hispanic American man who resides in Staten Island, New York.

7. Plaintiff JOSE HERNANDEZ is a forty-year-old Hispanic American man who resides in Staten Island, New York.

8. Plaintiff ROSE ZAYAS is a sixty-nine-year-old Hispanic American woman who resides in Staten Island, New York.

9. Defendant CITY OF NEW YORK was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

10. Defendant CITY OF NEW YORK maintains the New York City Police Department (hereinafter referred to as "NYPD"), a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the aforementioned municipal corporation, CITY OF NEW YORK.

11. That at all times hereinafter mentioned, the individually named defendants MANUEL SEPULVEDA, IGNAZIO CONCA, SERENA SMITH, HENRY CHERNYAVSKY, FRANK LUPO, MICHAEL SMITH, JAMES PEDRO, and JOHN and JANE DOE 1 through 10, were duly sworn police officers of said department and were acting under the supervision of said

department and according to their official duties.

12. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State of New York and/or the City of New York.

13. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant CITY OF NEW YORK.

FACTS

14. On January 16, 2009, at approximately 8:00 a.m., the defendant NYPD police officers broke the door of 63 John Street, Staten Island, New York, and entered said home.

15. The defendant officers pointed firearms at plaintiffs CHRISTOPHER PEREZ, JOSE HERNANDEZ, and ROSE ZAYAS, who were sleeping in their respective beds, grabbed them, threw them on the floor, and placed handcuffs on their wrists.

16. The defendant officers handcuffed and imprisoned plaintiff ZAYAS at 63 John Street for approximately two hours before releasing her without filing charges against her.

17. The defendant officers then imprisoned plaintiffs PEREZ and HERNANDEZ in an NYPD van and transported them to the 120th Precinct stationhouse and imprisoned said plaintiffs therein.

18. The defendants imprisoned plaintiffs PEREZ and HERNANDEZ until January 17, 2009 when they were released following their arraignments -- approximately twenty seven hours after they were falsely arrested -- in Richmond County Criminal Court on baseless charges filed based on the false allegations of defendant SEPULVEDA.

19. The defendants initiated said prosecution with malice, and otherwise caused said prosecution to be commenced against plaintiffs for the purpose of obtaining a collateral objective outside the legitimate ends of the legal process, to wit: to cover up the above mentioned abuse of authority.

20. The malicious prosecution compelled plaintiff PEREZ to return to Court for approximately ten appearances until on April 15, 2010, all of the purported charges levied against plaintiff PEREZ, based on the false allegations of the defendants, were dismissed and sealed in Richmond County Criminal Court.

21. The malicious prosecution compelled plaintiff HERNANDEZ to return to Court for approximately six appearances until on September 30, 2009, all of the purported charges levied against plaintiff HERNANDEZ, based on the false allegations of the defendants, were dismissed and sealed in Richmond County Criminal Court.

22. Defendant IGNAZIO supervised defendants SEPULVEDA, SERENA SMITH, CHERNYAVSKY, LUPO, MICHAEL SMITH, and PEDRO and approved of, oversaw, and otherwise presided over the defendants' arrest and prosecution of the plaintiff.

23. The defendant officers participated in or failed to intervene in the illegal conduct described herein.

24. All of the above occurred as a direct result of the unconstitutional policies, customs or practices of the City of New York, including, without limitation, the inadequate screening, hiring, retaining, training and supervising of its employees, and due to discrimination against plaintiffs due to their race and/or nationality.

25. The aforesaid event is not an isolated incident. Defendant CITY OF NEW YORK is aware (from lawsuits, notices of claims, and complaints filed with the NYPD's Internal Affairs

Bureau, and the CITY OF NEW YORK'S Civilian Complaint Review Board) that many NYPD officers, including the defendants, are insufficiently trained regarding: the proper way to execute search warrants; the treatment of innocent and/or uninvolved individuals who are found at a location of an execution of a search warrant; and the ramifications of falsification.

26. Defendant CITY OF NEW YORK is further aware that such improper training has often resulted in a deprivation of civil rights. Despite such notice, defendant CITY OF NEW YORK has failed to take corrective action. This failure caused the officers in the present case to violate the plaintiffs' civil rights.

27. Moreover, upon information and belief, defendant CITY OF NEW YORK was aware, prior to the incident, that the individual defendants lacked the objectivity, temperament, maturity, discretion, and disposition to be employed as police officers. Despite such notice, defendant CITY OF NEW YORK has retained these officers, and failed to adequately train and supervise them.

28. As a result of the foregoing, plaintiffs sustained, *inter alia*, physical injuries, emotional distress, embarrassment, humiliation, and deprivation of their constitutional rights.

Federal Claims

AS AND FOR A FIRST CAUSE OF ACTION (Deprivation of Rights Under 42 U.S.C. §§ 1981 and 1983)

29. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs "1" through "28" with the same force and effect as if fully set forth herein.

30. All of the aforementioned acts of defendants, their agents, servants and employees were carried out under the color of state law.

31. All of the aforementioned acts deprived plaintiffs, members of a racial minority,

of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. §§ 1981 and 1983.

32. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, with the entire actual and/or apparent authority attendant thereto, and with the intent to discriminate on the basis of race.

33. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the CITY OF NEW YORK and the New York City Police Department, all under the supervision of ranking officers of said department.

34. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

35. As a result of the foregoing, plaintiffs CHRISTOPHER PEREZ, JOSE HERNANDEZ, and ROSE ZAYAS are entitled to compensatory damages in amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A SECOND CAUSE OF ACTION
(False Arrest/Unlawful Imprisonment under 42 U.S.C. § 1983)

36. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered "1" through "35" with the same force and effect as if fully set forth herein.

37. Defendants arrested plaintiffs without probable cause, causing them to be

detained against their will for an extended period of time and subjected to physical restraints.

38. Defendants caused plaintiffs to be falsely arrested and unlawfully imprisoned.

39. As a result of the foregoing, plaintiffs CHRISTOPHER PEREZ, JOSE HERNANDEZ, and ROSE ZAYAS are entitled to compensatory damages in amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A THIRD CAUSE OF ACTION
(Malicious Prosecution under 42 U.S.C. § 1983)

40. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs numbered "1" through "39" with the same force and effect as if fully set forth herein.

41. Defendants initiated, commenced and continued a malicious prosecution against plaintiffs CHRISTOPHER PEREZ and JOSE HERNANDEZ.

42. Defendants caused plaintiffs CHRISTOPHER PEREZ and JOSE HERNANDEZ, to be prosecuted without any probable cause until the charges brought against each of them were dismissed and sealed. In particular, the charges against plaintiff HERNANDEZ were dismissed on or about September 30, 2009, and the charges against plaintiff PEREZ were dismissed on or about April 15, 2010.

43. As a result of the foregoing, plaintiffs CHRISTOPHER PEREZ and JOSE HERNANDEZ are entitled to compensatory damages in amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A FOURTH CAUSE OF ACTION
(Malicious Abuse of Process under 42 U.S.C. § 1983)

44. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered “1” through “43” with the same force and effect as if fully set forth herein.

45. Defendants issued criminal process against plaintiffs CHRISTOPHER PEREZ and JOSE HERNANDEZ by causing their arrest and prosecution in Richmond County Criminal Court.

46. Defendants caused plaintiffs CHRISTOPHER PEREZ and JOSE HERNANDEZ to be arrested and prosecuted in order to obtain a collateral objective outside the legitimate ends of the legal process, to wit: to cover up their abuse of authority, and thereby violated plaintiffs’ right to be free from malicious abuse of process.

47. As a result of the foregoing, plaintiffs CHRISTOPHER PEREZ and JOSE HERNANDEZ are entitled to compensatory damages in amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney’s fees, costs and disbursements of this action.

AS AND FOR A FIFTH CAUSE OF ACTION
(Failure to Intervene under 42 U.S.C. § 1983)

48. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered “1” through “47” with the same force and effect as if fully set forth herein.

49. Defendants had an affirmative duty to intervene on behalf of plaintiffs CHRISTOPHER PEREZ, JOSE HERNANDEZ, and ROSE ZAYAS, whose constitutional rights were being violated in their presence by other officers.

50. The defendants failed to intervene to prevent the unlawful conduct described herein.

51. As a result of the foregoing, plaintiffs CHRISTOPHER PEREZ, JOSE HERNANDEZ, and ROSE ZAYAS' liberty was restricted for an extended period of time, they were put in fear of their safety, and they were humiliated and subjected to handcuffing and other physical restraints.

52. As a result of the foregoing, plaintiffs CHRISTOPHER PEREZ, JOSE HERNANDEZ, and ROSE ZAYAS are entitled to compensatory damages in amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A SIXTH CAUSE OF ACTION
(Violation of the Equal Protection Clause under 42 U.S.C. § 1983)

53. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered "1" through "52" with the same force and effect as if fully set forth herein.

54. The defendants falsely arrested CHRISTOPHER PEREZ, JOSE HERNANDEZ and ROSE ZAYAS and maliciously prosecuted plaintiffs CHRISTOPHER PEREZ and JOSE HERNANDEZ because of the plaintiffs' national origin, and/or race, or otherwise failed to intervene to prevent such treatment committed in their presence by other NYPD officers.

55. As a result of the foregoing, the plaintiffs were deprived of their rights under the Equal Protection Clause of the United States Constitution.

56. As a result of the foregoing, plaintiffs CHRISTOPHER PEREZ, JOSE HERNANDEZ, and ROSE ZAYAS are entitled to compensatory damages in amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this

action.

AS AND FOR A SEVENTH CAUSE OF ACTION
(Deprivation of Substantive Due Process under 42 U.S.C. § 1983)

57. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered “1” through “56” with the same force and effect as if fully set forth herein.

58. The defendants conduct herein was an abuse of executive power so clearly unjustified by any legitimate objective of law enforcement as to be barred by the Fourteenth Amendment.

59. As a result of the foregoing, the plaintiffs were deprived of their liberty and right to substantive due process, causing emotional and physical injuries.

60. As a result of the foregoing, plaintiffs CHRISTOPHER PEREZ, JOSE HERNANDEZ, and ROSE ZAYAS are entitled to compensatory damages in amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney’s fees, costs and disbursements of this action.

AS AND FOR AN EIGHTH CAUSE OF ACTION
(Supervisory Liability under 42 U.S.C. § 1983)

61. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered “1” through “60” with the same force and effect as if fully set forth herein.

62. The supervisory defendants personally caused plaintiffs’ constitutional injury by being deliberately or consciously indifferent to the rights of others in failing to properly supervise and train their subordinate employees.

63. As a result of the foregoing, plaintiffs CHRISTOPHER PEREZ, JOSE HERNANDEZ, and ROSE ZAYAS are entitled to compensatory damages in amount to be fixed

by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A NINTH CAUSE OF ACTION
(Municipal Liability under 42 U.S.C. § 1983)

64. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered "1" through "63" with the same force and effect as if fully set forth herein.

65. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

66. The aforementioned customs, policies, usages, practices, procedures and rules of the New York City Police Department included, but were not limited to, arresting citizens without probable cause and/or based on their mere presence during the execution of a search warrant despite the absence of individualized probable cause, as well as committing perjury and/or manufacturing evidence and/or engaging in falsification in an effort to convict such individuals. In addition, the CITY OF NEW YORK engaged in a policy, custom or practice of inadequate screening, hiring, retaining, training, and supervising its employees that was the moving force behind the violation of plaintiffs' rights as described herein. As a result of the failure of the CITY OF NEW YORK to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant CITY OF NEW YORK has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

67. The foregoing customs, policies, usages, practices, procedures and rules of the

CITY OF NEW YORK and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of plaintiffs.

68. The foregoing customs, policies, usages, practices, procedures and rules of the CITY OF NEW YORK and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiffs as alleged herein.

69. The foregoing customs, policies, usages, practices, procedures and rules of the CITY OF NEW YORK and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiffs as alleged herein.

70. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the CITY OF NEW YORK and the New York City Police Department, plaintiffs were falsely arrested, and maliciously prosecuted.

71. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating plaintiffs' constitutional rights.

72. All of the foregoing acts by defendants deprived plaintiffs of federally protected rights, including, but not limited to, the right:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from false arrest/unlawful imprisonment;
- C. To be free from the failure to intervene;
- D. To be free from malicious prosecution;
- E. To be free from malicious abuse of process; and
- F. To receive equal protection under law.

73. As a result of the foregoing, plaintiffs CHRISTOPHER PEREZ, JOSE HERNANDEZ, and ROSE ZAYAS are entitled to compensatory damages in amount to be fixed

by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

WHEREFORE, plaintiffs CHRISTOPHER PEREZ, JOSE HERNANDEZ, and ROSE ZAYAS demand judgment and pray for the following relief, jointly and severally, against the defendants:

- (A) full and fair compensatory damages in an amount to be determined by a jury;
- (B) punitive damages in an amount to be determined by a jury;
- (C) reasonable attorney's fees and the costs and disbursements of this action; and
- (D) such other and further relief as appears just and proper.

Dated: Brooklyn, New York
January 13, 2012

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By:


BRETT H. KLEIN (BK4744)

Attorneys for Plaintiffs CHRISTOPHER PEREZ,
JOSE HERNANDEZ, and ROSE ZAYAS

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

-----X
CHRISTOPHER PEREZ, JOSE HERNANDEZ, and
ROSE ZAYAS,

Plaintiffs,

-against-

11 CV 3117
(SJ) (MDG)

CITY OF NEW YORK, MANUEL SEPULVEDA, IGNAZIO
CONCA, SERENA SMITH, HENRY CHERNYAVSKY,
FRANK LUPO, MICHAEL SMITH, JAMES PEDRO, and
JOHN and JANE DOE 1 through 10, individually and in their
official capacities, (the names John and Jane Doe being fictitious,
as the true names are presently unknown),

Defendants.
-----X

AMENDED COMPLAINT

LEVENTHAL & KLEIN, LLP
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UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

Christopher Perez, Jose Hernandez, Rose Zayas,

Plaintiffs,

-against-

City of New York, Manuel Sepulveda, Ignazio
Conca, Serena Smith, Henry Chernyavsky, Frank
Lupo, Michael Smith, James Pedro, and John and
Jane Doe 1 through 10, individually and in their
official capacities, (the names John and Jane Doe
being fictitious, as the true names are presently
unknown),

Defendants.

**STIPULATION OF
SETTLEMENT AND ORDER OF
DISMISSAL**

11-CV-3117

WHEREAS, plaintiffs commenced this action by filing a complaint on or about June 29, 2011, alleging that the defendants violated plaintiffs' federal civil and state common law rights; and

WHEREAS, defendants City of New York, Officer Manuel Sepulveda, Sergeant Ignazio Conca and Officer Serena Smith have denied any and all liability arising out of plaintiffs' allegations; and

WHEREAS, the parties now desire to resolve the issues raised in this litigation, without further proceedings and without admitting any fault or liability; and

WHEREAS, plaintiffs have authorized their counsel to settle this matter on the terms set forth below;

NOW, THEREFORE, IT IS HEREBY STIPULATED AND AGREED, by and between the undersigned, as follows:

1. The above-referenced action is hereby dismissed against defendants, with prejudice, and without costs, expenses, or attorneys' fees in excess of the amount specified in paragraph "2" below.

2. Defendant City of New York hereby agrees to pay plaintiff Christopher Perez, the sum of Fifteen Thousand (\$15,000.00) Dollars; plaintiff Jose Hernandez, the sum of Thirteen Thousand Five Hundred (\$13,500.00) Dollars and plaintiff Rose Zayas, the sum of One Thousand Five Hundred (\$1,500.00) Dollars in full satisfaction of all claims, including claims for costs, expenses and attorneys' fees. In consideration for the payment of these sums, plaintiffs agree to dismissal of all the claims against the defendants and to release the defendants and any present or former employees and agents of the City of New York or any entity represented by the Office of the Corporation Counsel, from any and all liability, claims, or rights of action alleging a violation of plaintiffs' civil rights, from the beginning of the world to the date of the General Release, including claims for costs, expenses, and attorneys' fees.

3. Plaintiffs each shall execute and deliver to defendant City of New York's attorney all documents necessary to effect this settlement, including, without limitation, a General Release based on the terms of paragraph 2 above and an Affidavit of Status of Liens. If Medicare has provided payment and/or benefits for any injury or condition that is the subject of this lawsuit, prior to tendering the requisite documents to effect this settlement, plaintiffs shall have notified Medicare and shall submit with the settlement documents a Medicare final demand letter for conditional payments. A Medicare Set-Aside Trust may also be required if future anticipated medical costs are found to be necessary pursuant to 42 U.S.C. § 1395y(b) and 42 C.F.R. §§ 411.22 through 411.26.

4. Nothing contained herein shall be deemed to be an admission by the defendants that they have in any manner or way violated plaintiffs' rights, or the rights of any other person or entity, as defined in the constitutions, statutes, ordinances, rules or regulations of the United States, the State of New York, or the City of New York or any other rules or regulations of any department or subdivision of the City of New York. This stipulation shall not be admissible in, nor is it related to, any other litigation or settlement negotiations.

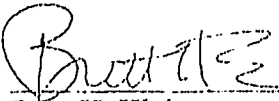
5. Nothing contained herein shall be deemed to constitute a policy or practice of the City of New York or any agency thereof.

6. Plaintiffs agree to hold harmless defendants regarding any liens or past and/or future Medicare payments, presently known or unknown, in connection with this matter. If conditional and/or future anticipated Medicare payments have not been satisfied, defendants reserve the right to issue a multiparty settlement check naming Medicare as a payee or to issue a check to Medicare directly based upon Medicare's final demand letter.

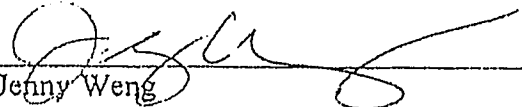
7. This Stipulation and Order contains all the terms and conditions agreed upon by the parties hereto, and no oral agreement entered into at any time nor any written agreement entered into prior to the execution of this Stipulation and Order regarding the subject matter of the instant proceeding shall be deemed to exist, or to bind the parties hereto, or to vary the terms and conditions contained herein.

Dated: New York, New York
_____, 2012

Leventhal & Klein, LLP
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By: 
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By: 
Jenny Weng
Assistant Corporation Counsel

SO ORDERED;

Dated: New York, New York
_____, 2012

HON. STERLING JOHNSON, JR.
UNITED STATES DISTRICT JUDGE